

25STCV07468 25STCV07468

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Case Number: 25STCV07468 Hearing Date: August 18, 2026 Dept: 735

Flores v. The Allison, LLC,

et al.

Motion to Compel Further Responses to Form

Interrogatories (Set One) and Special Interrogatories (Set One)

BACKGROUND

Plaintiff filed the operative complaint against Defendants alleging causes of action related to habitability.

PRELIMINARY ISSUES

As a preliminary

matter, Plaintiff's motion is improper because it combines two separate motions to compel further (1. Form Interrogatories; and 2. Special Interrogatories).

Multiple motions should not be combined in a single filing. "Every

direction of a court or judge, made or entered in writing, and not included in

a judgment, is denominated an order. An application for an order is a motion".

(Code Civ. Proc., § 1003.) Government Code Section 70617 requires payment of a

\$60.00 filing fee for each motion filed with the Court. A party may not

circumvent the Government Code with an omnibus filing. Generally, an additional

filing fee is required before the Court may hear the motion. Nevertheless, the court

will exercise its discretion and rule on the merits below since the opposition

addresses the motion on substantive grounds. Plaintiff is admonished to comply

with the requirements of Code of Civil procedure Section 1003 and Government

Code Section 70617 moving forward.

MEET AND CONFER

Plaintiff's counsel declares he "sent a detailed meet and confer letter, outlining the issues with the responses, and requested further responses by January 12." (Greer Decl., ¶5, Ex. H.) "The parties then discussed the discovery telephonically on January 8, 2026." (Id.) Plaintiff's counsel further declares no supplemental responses were provided nor any indication that Allison wanted more time to supplement the responses at issue. (Id., ¶6.)

In contrast, Defendant's counsel of record states that Allison responded to Plaintiff's meet and confer letter on December 30, 2025, requesting further clarification since it was unclear whether it was related to the January 15, 2026 motion to compel hearing but Plaintiff never responded. (Dao Decl., ¶8, Ex. C.) Furthermore, defendant's counsel states that its office never spoke with plaintiff's counsel on January 8, 2026. (Id.) In reply, plaintiff's contends states he spoke with a Mr. Soldato and Ms. Dao was not the counsel of record until February 26, 2026. (Reply at 2:21-25.) Therefore, the court finds that Plaintiff fulfilled his meet and confer obligations.

DISCUSSION

Plaintiffs moves for an order compelling Allison to provide further responses to Plaintiff's form interrogatories (set one) nos. 4.1, 12.1, 12.4, 15.1, 17.1, and special interrogatories (set one) nos. 14, 17, and 34. Plaintiff contends that further responses are warranted because (1) Allison waived the ability to use Code of Civil Procedure Section 2030.230 per Code of Civil Procedure Section 2030.290; (2) objections have been waived due to failure to provide a timely responses; (3) the responses are incomplete; and (4) document production is incomplete.

Discovery Responses Timeline

On May 19, 2025, Plaintiff served Allison with form interrogatories (set one) and special interrogatories (set one). (Greer Decl., ¶2, Exs. A-B; Dao Decl., ¶3.) Allison served its responses to the discovery requests on December 22, 2025, or December 23, 2025, which is approximately six months after responses were due. (Greer Decl., ¶4, Exs. D-E; Dao Decl., ¶6, Ex. A.) Therefore, Allison waived any objections and the right to use Code of Civil Procedure Section 2030.230. (See Code Civ. Proc., § 2030.290, subd. (a).)

Merits of the Motion

Further responses are warranted. In response to FROG nos. 4.1, Allison invoked Code of Civil Procedure Section 2030.230 and failed to respond to subparts (f)-(g). (Plf. Sep. Stmt. at 2:20-25.) Likewise, Allison objected to FROG nos. 12.1 and 12.4 on the grounds of vagueness, ambiguity, burden, and not being reasonably calculated to lead to discovery of admissible evidence. (Id. at 3:9-14, 4:1-3.) Moreover, the responses to FROG nos. 15.1 and 17.1 are evasive and recite Allison's objections in other discovery responses, despite indicating that the identities and documents of some witnesses are known to Allison at this time. (Id. at 4:14-20, 5:3-11:11.) Pursuant to Code of Civil Procedure Section 2030.220, "Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ. Proc., § 2030.220, subd. (a).) Thus, to the extent that Allison's responses to FROG nos. 15.1 and 17.1 indicate that it has the information available to answer, a complete and straightforward response must be provided.

Similarly, Allison invoked Code of Civil Procedure Section 2030.230 in response to special interrogatories ("SROG") (set one) nos. 14 and 17. (Plf. Sep. Stmt. at 11:22-12:3, 12:11-12.) Also, Allison stated objections to SROG no. 34 and was evasive in answering what facts support its contention that Plaintiff is a "hoarder." (Id. at 12:17-22.) There is no indication that Allison has sought relief from waiver of these objections and the right to exercise the option to produce writings under Section 2030.230 per Code of Civil Procedure Section 2030.290. Furthermore, Allison's own separate statement and opposition merely state that further responses are not necessary because Plaintiff did not properly meet and confer. (Def. Sep. Stmt. at pp. 2-25.) Such contention is unavailing because the court already found that Plaintiff's meet and confer obligations were satisfied.

Monetary

Sanctions

Plaintiff's counsel seeks \$2,350.00

in monetary sanctions against Allison and its counsel of record, consisting of:

(1) 3.2 hours researching and drafting the present motion; (2) 0.5 hour drafting the reply; and (3) 1.0 hour attending the hearing on the present motion at an hourly rate of \$500.00 per hour. (Greer Decl., ¶8.) In

opposition, Allison's counsel seeks \$8,250.00 in sanctions for (1) 10.0 hours spent reviewing and preparing the opposition and (2) 5.0 hours reviewing the reply and appearing for the hearing at an hourly rate of \$550.00 per hour. As discussed above, Plaintiff has demonstrated that further responses are warranted, thus Allison's request for monetary sanction is denied. Additionally, plaintiff's request for attorney's fees is reasonable. Accordingly, the court will impose monetary sanctions in the amount of \$2,350.00 against Allison.

CONCLUSION

The court grants Plaintiff Ricky Flores' motion to compel further responses to form interrogatories (set one) and special interrogatories (set one). The court also grants Plaintiff's request for monetary sanctions of \$2,350.00 payable within 30 days of this order.

Defendant The Allison LLC is ordered to provide verified, further responses to Plaintiff's form interrogatories (set one) nos. 4.1, 12.1, 12.4, 15.1, 17.1, and special interrogatories (set one) nos. 14, 17, and 34 within 30 days of this order.

Plaintiff shall give notice.